



DEPARTMENT OF PUBLIC SAFETY GEORGIA STATE PATROL

PURSUIT CRITIQUE

TROOPER NAME – Corporal James D. Cochran #623

Work Assignment: Troop/Division - A; Post/Unit – 5 Dalton

INCIDENT REPORT # DPS00158404

Related Crash Reports: C000949551 ; _____ ; _____

P.I.T. Involved: Yes

S.C.R.T. Involved: No

Special Investigations Unit Involved: No

Use of Force Involved: Yes

MEETING

1. Document the date, time and location of the pursuit critique meeting with the involved trooper.

Date: 06/11/2024

Time: 1115 hours

Location: Gordon County Recreation Department in Calhoun, GA (MFF Training).

2. List all personnel present at the meeting by name and rank. Include the trooper, an NCO in whose territory the pursuit was terminated, and the trooper's immediate supervisor.

Personnel present: Captain Shawn Prather #11, Sgt. Benjamin Boyd #357 and Cpl. James Cochran #623.

INITIATION

1. Provide the date and time the trooper became involved in the pursuit.

Date: 06/09/2024

Time: 1038 hours

2. Explain the circumstances that led to the trooper's involvement in the pursuit.

Cpl. Cochran attempted to stop a suspect that had previously made threats of violence against law enforcement on social media and had entered local churches in the Catoosa County area, causing disturbances. The suspect refused to stop and a pursuit ensued.

3. If trooper's involvement was the result of a request from another agency, provide details regarding the request.

☐ N/A

If Yes, explain: Cpl. Cochran was requested to take the primary position in the pursuit by Catoosa County Sheriff's Office, Detective Chris Lyons #425. This was conducted over the Catoosa County radio frequency and Cpl. Cochran, hearing this request, proceeded to take the primary pursuit position.

4. List the number and identity of other agencies and officers involved in the pursuit.

☐ N/A

If needed, list: One (1) Georgia State Trooper identified as Cpl. James Cochran #623. One (1) Catoosa County Sheriff's Deputy identified as Detective Chris Lyons #425 and one (1) Ringgold Police Officer identified as Officer Chad Cardin #420.

5. If other occupants were in the patrol vehicle, identify them and state their reason for being in the vehicle.

☒ N/A

If Yes, list:

6. Did the trooper take appropriate safety precautions?

☒ Yes

☐ No

If no, explain:

7. Did the trooper eliminate distractions such as FM radio noise?

☒ Yes

☐ No

If no, explain:

COMMUNICATION

1. If the reporting trooper initiated the pursuit by means of observing a violation and attempting a traffic stop, explain the communication that took place between the trooper and the CEO.

☒ N/A

If Yes, explain:

2. Did the trooper relay pertinent information to the CEO including:

- Location and direction of travel.
- Description of the pursued vehicle.
- Number and description of occupants.
- Information regarding the use of firearms, threat of force, or other hazard.
- Options for terminating the pursuit.
- Observed danger to public safety.
- Any need for assistance.

☒ Yes

☐ No

If no, explain:

3. Explain any communication that took place between the CEO and other law enforcement agencies or officers in the area.

☐ N/A Explain: Once the pursuit initiated, the Troop A Communications Center conducted a broadcast of the pursuit to all nearby Troopers and also contacted the Catoosa County 911 Center by phone to inform them of the pursuit.

4. If the reporting trooper became involved in the pursuit at the request of another agency, explain any communication that took place between the trooper and another officer of the requesting agency. Give details of communication between the CEO and the requesting agency regarding the location, direction of travel, nature of the offense, any pending warrants, and details of erratic driving behavior illustrating the potential danger to the public if the suspect is not immediately apprehended.

☐ N/A If Yes, explain: Catoosa County Detective Lyons was primary in the pursuit and Cpl. Cochran was in the secondary position. Detective Lyons asked GSP to "come on around" over the Catoosa County radio frequency. Hearing the radio traffic, Cpl. Cochran proceeded to pass Detective Lyons and assumed the primary pursuit position.

5. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

6. At the conclusion of the pursuit, did the trooper advise the CEO immediately, so other units would be familiar with the location to offer assistance, or slow in an effort to reduce the likelihood of further risk of injury to either a trooper or a member of the general public?

☒ Yes ☐ No If no, explain:

7. Discuss any needed areas of improvement with the CEO.

☒ N/A If Yes, explain:

PURSUIT

1. Describe the route the pursuit traveled, its duration and distance.

Describe: The pursuit initiated on Emberson Drive traveling westbound in Catoosa County. The suspect then proceeded west on Robin Road. The pursuit terminated on Robin Road. The pursuit lasted for approximately 50 seconds, and traveled a total distance of 0.75 miles.

2. Were the trooper's actions during the pursuit objectively reasonable?

☒ Yes ☐ No If no, explain:

3. If the pursuit traveled into another post's territory, explain whether the initiating trooper yielded to a trooper whose territory the pursuit was in.

☒ N/A If Yes, explain:

4. If the initiating trooper yielded the primary position to another unit, explain whether he proceeded to the termination point of the pursuit to provide guidance and information for the arrest of the violator.

☒ N/A If Yes, explain:

5. Explain if there were any factors during the pursuit that indicated the possible commission of a felony.

☒ N/A If Yes, explain: The suspect's actions during the pursuit support a felony charge of fleeing and attempting to elude. The suspect was possibly armed and had made previous threats to law enforcement on social media.

6. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

7. Did the trooper practice commentator driving?

☒ Yes ☐ No If no, explain:

8. Did the trooper remain calm and professional during the pursuit?

☒ Yes ☐ No If no, explain:

DRIVING SKILLS

1. Did the trooper use due caution when operating his vehicle during the pursuit?

☒ Yes ☐ No If no, explain:

2. Were the driving skills/techniques initiated appropriately?

☒ Yes ☐ No If no, explain:

3. Were the driving skills/techniques appropriate during the pursuit?

☒ Yes ☐ No If no, explain:

4. Were the driving skills/techniques appropriate during termination?

☒ Yes ☐ No If no, explain:

5. Did the trooper appear to experience adrenalin rush, tunnel vision, or any other internal/external factors?

☒ No If Yes, explain:

6. Did the trooper get into the danger zone due to adrenalin rush, tunnel vision, or other factors?

☒ No If Yes, explain:

EQUIPMENT

1. Were the blue lights and siren in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

2. If the patrol car was equipped with wig-wag headlights, were they in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

3. Was the in-car camera working properly?

☒ Yes ☐ No If no, explain:

4. Was the trooper's microphone working properly?

☒ Yes

☐ No

If no, explain:

TERMINATION

1. Did the trooper continue the pursuit to a conclusion? If not, explain the reasons.

☒ Yes

☐ No

If no, explain:

2. Was there a good probability of the suspect's arrest at a later time because of positive identification?

☒ N/A

If Yes, explain:

3. Articulate attempts taken by the trooper to utilize pursuit termination techniques, such as tire deflating devices, roadblocks, P.I.T. maneuver, and trooper discretion.

☐ N/A

Explain: Cpl. Cochran utilized the Precision Immobilization Technique (PIT) to terminate the pursuit. Cpl. Cochran pulled along the passenger side, matched speeds and initiated the PIT. The PIT was successful at terminating the pursuit.

4. Expound on safety precautions utilized by the trooper during and after the pursuit.

☐ N/A

Explain: Due to the circumstances, Cpl. Cochran made a good decision to terminate the pursuit by utilizing the PIT. Cpl. Cochran communicated and commentated effectively during the pursuit.

5. Articulate the existing traffic conditions during the pursuit, realizing the conditions may differ at various times during the pursuit.

Explain: The pursuit occurred during daylight hours with clear skies and the roadway surface was dry. All roadways traveled during the pursuit would be described as having light traffic conditions.

6. Address whether there are any conditions that would create additional danger to the public by continuing the pursuit.

☐ N/A

If Yes, explain: The suspect was traveling towards GA 151, which has heavier traffic conditions, increasing the likelihood of harm to the public. Cpl. Cochran, realizing the possible increased danger to the public, terminated the pursuit by initiating the PIT.

7. Address whether there were any conditions that necessitated the pursuit being brought to an immediate conclusion and describe the conditions.

☐ N/A

If Yes, explain: The suspect was traveling towards GA 151, which has heavier traffic conditions, increasing the likelihood of harm to the public. Cpl. Cochran, realizing the possible increased danger to the public, terminated the pursuit by initiating the PIT.

8. Establish whether the violator was an immediate threat to the trooper, the public or themselves.

☐ N/A If Yes, explain: The suspect had previously made threats of violence to law enforcement. During the pursuit the suspect drove on the wrong side of the roadway and failed to stop at an intersection controlled by a stop sign. The suspect's reckless driving, coupled with the threats of violence, created a danger for the public and law enforcement.

9. Outline whether the use of deadly force was justified and if so, why it was justified.

☒ N/A If Yes, explain:

10. Establish whether the method of termination was reasonable based on the facts gathered during the pursuit, and state those facts.

☐ N/A If Yes, explain: Prior to the pursuit, the suspect had made threats of violence against law enforcement and was harassing local churches. These threats of violence and the fact the suspect was armed made the suspect a serious threat. Considering these facts, coupled with the reckless driving of the suspect during the pursuit, support the use of a pursuit ending tactic. Cpl. Cochran considered the Stop Stick and Box-in maneuver but were not considered due to the high possibility that the suspect was armed and traveling towards a busy state route (GA 151). Considering these facts, Cpl. Cochran made the decision to initiate the PIT. Cpl. Cochran properly applied the PIT and the location he chose was reasonable. Cpl. Cochran's actions were in compliance with Georgia Law and DPS Policy.

11. If there were any injuries, state who received them, the type and severity.

☒ N/A If Yes, explain:

12. If there was a fatality, provide basic facts surrounding the circumstances.

☒ N/A If Yes, explain:

13. Address any damage to vehicles.

☐ N/A If Yes, explain: The suspect's vehicle received minor damage to the passenger side from the PIT. Cpl. Cochran's patrol car was not damaged.

TROOPER'S ABILITIES AND EXPERIENCE

1. Prior pursuits (compare if appropriate).

☐ N/A If Yes, explain: Cpl. Cochran has been involved in numerous pursuits during his career as a State Trooper.

2. Past use of techniques and high speed driving.

☐ N/A If Yes, explain: Cpl. Cochran has received EVOC and Advanced EVOC Training. Cpl. Cochran is experienced with high speed driving and pursuits. He has implemented the PIT on multiple occasions.

ISSUES ADDRESSED

1. Positives.

☐

N/A

If Yes, explain: Cpl. Cochran utilized the Precision Immobilization Technique (PIT) to terminate the pursuit. Cpl. Cochran pulled along the passenger side, matched speeds and initiated the PIT. The PIT was successful at terminating the pursuit.

2. Areas for improvement.

☒

N/A

If Yes, explain:

3. Other considerations.

☒

N/A

If Yes, explain: A use of force report was completed by Cpl. Cochran for displaying his duty weapon as a precautionary measure during the arrest of the suspect.

RESPONSE FROM TROOPER OR SUPERVISOR

1. Allow trooper and supervisor an opportunity to respond or add comments.

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N/A

If Yes, explain:

CORRECTIVE ACTION TAKEN

1. Describe any corrective action taken as a result of the trooper's actions during the pursuit.

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N/A

If Yes, explain:

Captain Shawn Prather #11
Reviewing Officer

Capt. [Signature] #11

7/1/2024

Date